

Bruce, when Vice Chancellor, appears to have entertained similar views (*b*). But an order for such a mortgage was made by the Vice Chancellor of England (*c*); and again by Lord Cottenham, though his Lordship's attention was called to the case at the Rolls (*d*); and other orders have been made since (*e*).

Consent of feme covert.—Where the consent of a married woman was required by the trust, and the husband and wife presented a petition, with her concurrence, under the Act, it was held that this did not fulfil the requisition of the wife's consent to the investment; for when the husband and wife joined in any legal proceeding, it was not the act of the wife; and whenever she was to be bound, it was necessary that she should appear separately from her husband (*f*). [But now that a married woman can sue and be sued as if she were a *feme sole*, it is conceived that she may be bound without appearing separately.]

Lord St. Leonard's Act.—By 22 & 23 Vict. c. 35, s. 32 (*g*), trustees, executors, and administrators, where not expressly forbidden by the instrument creating the trust, may invest the trust-fund in real securities in any part of the *United Kingdom*; and investments on real securities in Ireland may therefore now be made.

62. Securities in Scotland.—Where trustees have a power of investing upon "real securities," it is conceived that real securities in *Scotland*, where the law is wholly different, would not fall within the description; and though the above-mentioned Act of 22 & 23 Vict. c. 35, allows investments in real securities in any part of the United Kingdom, yet as by the 33d section the Act is not to extend to Scotland, it would not be safe for trustees to invest in Scotch securities, until that construction of the Act has been sanctioned by some judicial decision (*h*).

(*b*) *Re Kirkpatrick's Trusts*, 15 Jur. 941. mortgage money should not be called in for five years.

(*c*) *Ex parte French*, 7 Sim. 510.

(*f*) *Norris v. Wright*, 14 Beav. 291.

(*d*) *Ex parte Pawlett*, 1 Ph. 570.

(*g*) Made retrospective by 23 &

(*e*) *Re Settlement of Allies and* 24 Vict. c. 38, s. 12; see *ante* p. 313.

Ux. N. R. 24 Jan. 1857, in which the Court sanctioned a proviso that the

(*h*) See *Re Miles's Will*, 5 Jur. N. S. 1236.